IN THE NATIONAL COMPANY LAW TRIBUNAL
CHANDIGARH (COURT – II)
(Through Hybrid Mode)

Item No.117

COMP.APPL/19(CH)2025
And
CP (CAA) No. 2/Chd/Hry/2025
(2nd Motion)

IN THE MATTER OF:
Tex Corp Private Limited ... Transferor Company

And

Tex Fasteners Pvt. Ltd. ... Transferee Company

Under Section: 230-232, CA 2013
Rule: 11 of NCLT Rules, 2016

Order delivered on 21.03.2025

CORAM:
SHRI. K. K. SINGH,
HON'BLE MEMBER (T)

SHRI. K. BISWAL,
HON'BLE MEMBER (J)

PRESENT:
For the Petitioner Companies : Mr. GS Sarin, PCS with Mr. Lokesh Dhiyani, Advocate

For the Income Tax Department : Mr. Varun Issar, Advocate, Senior Standing Counsel

ORDER

COMP.APPL/19(CH)2025

1. The present Application has been filed by the Petitioner Companies under Rule 11 of the NCLT Rules, 2016 seeking amendment in the prayer that was made in the 2nd motion petition bearing CP (CAA) No. 2/Chd/Hry/2025.
2. We have heard the Ld. Counsel as well as Authorized Representative for the Petitioner Companies.
3. It is submitted by the Ld. Counsel for the Petitioner Companies that in CP

(CAA) No. 2/Chd/Hry/2025, they have inadvertently sought prayer for dissolution of the Demerged Company.

4. He submits that the company survive and therefore, the company cannot be dissolved.

5. In that context by way of this Application he wants to seeks amendment for deleting Paragraph 44(F) from CP (CAA) No. 2/Chd/Hry/2025.

6. After hearing the Ld. Counsel for the Petitioner Companies, we allow the present application and allow to amend the prayer of the CP (CAA) No. 2/Chd/Hry/2025 by way of deleting Paragraph 44(F).

7. With this observation, COMP.APPL/19(CH)2025 is allowed and disposed of.

CP (CAA) No. 2/Chd/Hry/2025

1. Heard the Ld. Counsel as well as Authorized Representative for the Petitioner Companies.

2. List the matter on 08.05.2025 for hearing.

Sd/-
(K. K. SINGH)
MEMBER (T)

Sd/-
(K. BISWAL)
MEMBER (J)

Priyanka
21.03.2025